Where is the Backlash? Quotas and Perceived Legitimacy in Age-Biased, Patriarchal Settings

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When does the imposition of counter-normative quotas generate backlash in conservative societies? The existing literature seems to offer two stylized facts, seemingly in opposition: quotas may benefit marginalized groups or they may produce a backlash over-riding those benefits. This backlash may be especially likely when quotas are imposed 'from above' and would increase for more ambitious quotas, which represent larger deviations from the societal norm. To investigate this, we use an embedded survey experiment fielded in five counties in pastoralist regions of Northern Kenya, an area widely considered to hold traditional patriarchal and age-biased norms. Our experiment varies the magnitude of gender and youth quotas for participatory committees, intending to capture variation in backlash, as measured by both legitimacy and expectation of performance. Surprisingly, we find the opposite effect. Higher magnitude quotas (resulting in highly diverse committees), compared to lower magnitude quotas (resulting in moderately diverse committees) were strongly perceived as preferable across a number of both normative (trustworthiness) and instrumental (decision quality) measures. We discuss the possible explanations for this counterintuitive finding, drawing on both the debrief questions from our survey and the wider literature. We tentatively conclude that normative values are more complex than the binary 'conservative' and 'liberal' spectrum and briefly consider possible new questions and theoretical correctives.

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Section 1. Introduction

How should equity-promoting quotas, meant to advance rights and representation for marginalized groups, be designed to maximize legitimacy and the production of equitable outcomes, while minimizing normative backlash, which may blunt or even counteract these effects? This is a pressing question, as quotas in decision-making institutions, has become increasingly ubiquitous in recent decades (Belschner, 2021; Hughes et al., 2015). As of 2015, a significant majority of countries globally had adopted quotas in law, predominantly gender quotas (Hughes et al., 2019), alongside other identities such as age (Belschner, 2021) and ethnicity (Dunning & Nilekani, 2013).

The empirical and theoretical literature on inclusion and quotas supports two stylized facts, seemingly in tension. On one hand, theory and empirics suggest that inclusive quotas and increased descriptive representation can produce desired positive effects. Broadened representation can improve the legitimacy of institutions via symbolic representation, in terms of both procedural and substantive legitimacy (Clayton et al., 2019; Schwindt-Bayer & Mishler, 2005); can significantly change underlying attitudes alongside the motivation and behavior of marginalized groups (Beaman et al., 2009; Bhavnani, 2009); and can shift decisions towards goods favored by marginalized groups (Chattopadhyay & Duflo, 2004). On the other hand, the imposition of descriptive representation of one group may also fail to produce the desired effect normative or instrumental benefits (Clayton, 2015; Grillos, 2018). A potential reason for this is societal backlash, generated in response to social norm deviation.[1] Dominant groups may perceive the increased inclusion of marginalized as a threat, viewing decisions as less legitimate (Scherer & Curry, 2010) and may seek to counteract these incursions through social (Gottlieb, 2016) or political pressure (Yildirim et al., 2021) and prompt the mobilization of sustained counter-movements (Biroli & Caminotti, 2020).

We contribute to this literature by testing the hypothesis that it is not the presence of quotas alone but their *intensity* which engender backlash. Higher intensity, more ambitious quotas, which mandate a large 'intrusion' of previously marginalized groups into decision-making (Blalock, 1967, as cited in Krook, 2015) are hypothesized to provoke a stronger backlash due to both the threat to

[1] Social norm deviation is also referred to as counter-stereotypical behavior in the social psychology literature (Rudman, 1998; Rudman, Moss-Racusin, Glick, et al., 2012; Rudman, Moss-Racusin, Phelan, et al., 2012) .

dominant groups and violation of social norms (Bicchieri, 2006, 2016). According to this, we would expect high intensity quotas, which mandate a majority of seats being held by marginalized groups, to provoke backlash (i.e. lower legitimacy, and negative beliefs of competence or trust), conditional on the quotas departing meaningfully from existing power relationships and social norms.

Whereas many quotas are implemented as a result of bottom-up activism, our study examines 'top-down' quotas, imposed on communities, not as a result of community demand nor reflecting a shift in underlying norms. These quotas are common within participatory governance interventions in international development, where local decision-making institutions are formed primarily with reference to international, rather than local, norms. The imposition of normative quotas from the outside may be particularly likely to generate backlash, given it is relatively less tempered by domestic political process. Thus, our study is particularly relevant to the existing literature examining the role of gender quotas in the context of international development (Beath et al., 2013; Echavez, 2012; Gottlieb, 2016). Our study also builds on existing literature on participatory decision-making and budgeting within Kenya specifically. As will be discussed below, elite capture is a primary threat to public goods within the Kenya context, and participatory interventions are meant to provide a corrective to this by broadening the institutional interface for public good allocation. However, evidence shows that elites may still influence participatory processes (Sheely, 2015; Touchton & Wampler, 2023), and quotas to empower women in decision-making face barriers in translating involvement into tangible outcomes (Grillos, 2018).

To test this theory, we deploy a survey experiment fielded in pastoralist areas across Kenya's northern drylands. Kenya's politics has historically been dominated by men, with only 10.6% of elected positions going to women in 2022 (UN Women, 2023), and over two-thirds of Kenyans holding gender-biased beliefs about political leaders (United Nations, 2023). Our own survey data similarly finds significant support for patriarchal and age-biased attitudes, with 55%[2] of respondents holding age- or gender-biased beliefs regarding leadership. This tracks with existing studies on pastoralist communities, in which gender and age roles assign elder men as the primary decision makers for communal resources (Jode & Flintan, 2020).

Our design allows us to isolate the effect of varying the intensity of the quotas to mandate a percentage of youth and women on a hypothetical local decision-making committee, measuring changes in different elements of perceived expected performance. The presence of these committees is highly realistic, as committees very similar to the ones studied exist in parts of the same counties, and the survey research was motivated by proposals to 'scale up' these committees by the expansion of a similar style committee.

[2]Only 33% endorsed egalitarian beliefs across all four questions. List of gender and age norm questions can be seen in appendix

Besides focusing on the effect of shifting the intensity of the quota, our study also attempts to 'thin-slice' the question of where and when backlash may be occurring. While many studies have convincingly shown that backlash can prevent women from translating increased representation via quotas into meaningful policy impact, it is unclear whether this backlash is generated by perceptions from the community or initiated by political elites. By examining how the general population reacts, abstracting away from institutional details of the quota or the content of decisions, we are able to observe the response of the wider population to stronger versus weaker quotas alone.

Based on the literature, we hypothesize that backlash (lower legitimacy and support) will occur when quotas produce high diversity (e.g. over 60% women and youth), compared to lower quotas (20%), which are more in-line with limited female and youth roles and representation in decision-making[3]. We further hypothesize that men, elders, those with less education, and more conservative cultures will perceive high diversity committees as being less legitimate and having less capacity. Our focus on quota intensity extends the existing literature on female representation and survey experiments that study the impact of quotas on the extensive margin, but not on the intensive margin (most similarly, see Kao et al., 2023). This is a meaningful oversight, as quotas operate both as rules and as a signal of what is normative in society. Thus, quotas can be seen as 'weak' if they do not deviate from existing norms (mandate a minimum at or below social expectation) or strong if they force inclusion beyond what is normative (mandate a minimum above social expectation).

Our results are surprising, running opposite of expectation. We find that larger deviations from social norms – in which marginalized groups make up the majority of a decision-making body – produce no discernable backlash. Instead, there is a consistent positive bias *towards* highly inclusive committees. A significant positive bias of relatively large magnitude holds for dominant groups (men and elders), measures of legitimacy and trust, and the expectation of institutional effectiveness. Notably, respondents also predict that *others* in the community will likewise see highly inclusive institutions as more legitimate and of higher capacity.

Our findings are surprising, running almost universally reverse from expectation. Rather than inducing backlash, higher intensity quotas were associated with strong *positive* bias. These findings run counter to a number of existing theories about descriptive representation and quotas. First, these quotas were explicitly externally imposed, and highly divergent from norms of descriptive representation. Second, they represent 'reserved' seats, rather than quotas for nominees, and might be expected to conflict with democratic norms or be viewed as infantilizing for the groups (Kim & Fallon, 2023). And, third, while the *degree* of positive bias is attenuated for some groups with more conservative

[3]Our expectations are drawn from the percentage of women and youth on local committees in the counties, as well as the percentage of women in Kenya's national legislature. Just over 10% of elected positions were won by women in the 2022 elections (UN Women, 2023).

values (e.g. Muslim versus Christian pastoralists), across nearly all measures, the positive bias towards diverse committees remains significant, including for men and older populations. Two exploratory analyses provide evidence that the positive bias towards inclusive committees is not merely normative. First, the relationship holds even when controlling for respondents' elicited normative preferences for supporting youth and women in leadership positions. Second, in debrief questions, respondents do hold instrumental outcomes as similarly important to normative outcomes. These factors suggest that the broader population – beyond youth and women – believe their inclusion makes processes more legitimate and *effective*.

The final portion of our paper attempts to unpack why backlash not only fails to appear, but rather approval of institutions increased with higher deviation from the social norm. This question may be equally applicable to other surprising studies, such as Kao et al. (2023), where conservative societies in the MENA region have a positive reaction to the imposition of a quota. However, ours builds on this by showing that *higher* intensity quotas produce even larger positive biases. Our data does not support the notion that women and youth are 'present without presence' (Clayton et al., 2014), as respondents consistently expect that the inclusion of women and youth would have an impact on public-good outcomes, beyond normative benefits. As noted, our findings also differ from theory and existing studies, in which dominant groups fail to support quotas. Here, men and adults both believe inclusive quotas will benefit them, and are marginally more willing to trust and *want to join* these committees.

While tentative, we advance one explanation for our findings, which draws on the context of Kenya, in which elite capture and 'big men' politics (Cheeseman et al., 2020) may be perceived as the largest threat to communal goods. Based both on qualitative fieldwork and on existing studies, it may be that the inclusion of women and youth is a symbolic representation of re-apportioning power away from existing elites, who are predominantly older males. When quotas are imposed, it forces these males to relinquish their formal role, at minimum providing an institutional *opening* for limiting elite capture by incumbents. This interpretation accounts for the substantial, positive bias towards equity promoting quotas, while acknowledging that there is no evidence that the wider population holds egalitarian norms regarding decision-making (UN Women, 2023; United Nations, 2023).

Importantly, we do not claim to test whether quotas would be able to achieve the expected benefits respondents predict. Indeed, the existing literature on participatory planning in Kenya specifically suggests that, often, institutional interventions *are not* sufficient to overcome entrenched elite interests (Sheely, 2015), due to a lack of independent, strong civil society (Touchton & Wampler, 2023), or may only shift outcomes in limited domains (Grillos, 2018). That said, our results suggest that opposition and backlash to equity-promoting quotas is not emerging *directly* from popular perception of quotas, even those which deviate substantially from existing gender and age norms. This finding may

point researchers towards questions of how and whether dominant groups or elites *later* mobilize a backlash through strategic responses.

The paper proceeds as follows. Section 2 presents the theoretical framework and empirical design. Section 3 reports the main results, subgroup analysis, and exploratory moderation analysis. Section 4 discusses possible interpretations of the findings. Section 5 concludes.

Section 2. Theory and Empirical Design

The use of quotas to promote equity[4] requires that it departs from existing social norms (Bicchieri, 2006, 2016), by mandating counter-stereotypical inclusion of marginalized groups in decision-making (Rudman, Moss-Racusin, Glick, et al., 2012; Rudman, Moss-Racusin, Phelan, et al., 2012). However, because quotas depart from existing social norms and challenge existing power structures, there is a risk that they inspire a backlash among society and especially dominant groups, who mobilize to protect the social norms which favor their power. Theory suggests that the magnitude of social norm deviance is positively related to the emergence of backlash, with behavior that deviates more highly from the norm producing larger backlash (Bicchieri, 2006). With respect to quotas specifically, theory predicts that larger entry of marginalized groups into decision-making spaces are likely to be perceived as more threatening, producing more pronounced countermobilization (Blalock, 1967, as cited in Krook, 2015). Top-down, normative interventions which sharply depart from existing norms may be further expected to be perceived as less legitimate and as interference from external forces, resulting in purely performative compliance while dominant groups attempt to undermine the ability for marginalized groups to exert power (Gottlieb, 2016; Shapland et al., 2024).

Following this literature, our first hypothesis (**H1**) holds that more intense gender quotas – which depart substantially from the existing norms of gender and youth inclusion in decision-making in pastoralist Kenya – will produce a relatively larger backlash, especially among dominant groups. Our second hypothesis (**H2**) attempts to unpack the source of this backlash. We hypothesize that the source of this backlash is not only due to normative violations – that is, due to gender and age bias – but also due to lower *instrumental expectations* for youth and women communities. As youth and women have less access to power, and Kenya's political system is characterized by personalistic relationships (Cheeseman et al., 2020), youth and women may be expected to be systematically disadvantaged in exerting power on behalf of their communities. To test for this, we control for the elicited injunctive preferences of respondents with respect to youth and women's participation in leadership. We hypothesize that, even after controlling for normative preferences, respondents will still penalize youth and women due to lower expected instrumental effectiveness.

[4]Rather than reverse causation, where quotas lag the emergence of equity norms and outcomes.

Within this second hypothesis, we specifically expect measures of *instrumental* effectiveness to be most negatively affected for highly diverse committees, whereas other measures (e.g. trust) will be relatively less affected (**H2a**).

H1: *There will be a negative relationship between quota intensity applied to a hypothetical committee (descriptive representation of women and youth) and the perceived legitimacy and capacity of the committee, and lower willingness to donate towards committees with high intensity quotas.*

H2: *The negative relationship between quota intensity and perceptions will hold even when controlling for injunctive preferences (i.e., normative beliefs about whether women and youth should be part of decision-making), signaling concerns about the political capital of these groups in producing outcomes.*
H2a: *Even after controlling for injunctive preferences, respondents will consider hypothetical committees with women and youth lower on measures of effectiveness related to instrumental benefits (variables: experience_project, ability_confrontcorruption, and understand).*

Experimental design

We employ a 2x1 survey experiment to test the effect of increasing the *intensity* of quotas. This aligns with our interest in the investigating backlash due to changes in intensity of the quota, rather than the existence of a quota itself. We do not introduce a pure control because there is no obvious quota ratio which could be considered a non-treatment. While not a control, the 'low-quota' condition is expected to be roughly in-line with existing social norms, with quotas mandating a small % of representation for youth and women. In contrast, the 'high-quota' condition is expected to be a deviation from social norms.

Age and gender bias in Kenya's drylands

Our expectation for patriarchal and age-biased norms comes from both existing data and descriptive data from our survey. Kenya's politics has long been dominated by men, with women making slow gains over the past decade. In 2022, only 10.6% of all elected positions were won by women, across national and county (UN Women, 2023). This limited success is despite a constitutional mandate that no gender should represent more than two-thirds of legislative seats; a goal which has not been met. This roughly tracks with attitudinal measures, such as the World Values Survey 2017-2021, in which 70.3% of respondents reported a political bias against women (United Nations, 2023). Within this national context, pastoralist communities across the Horn of Africa are especially thought to exhibit defined gender and age-roles, in which elder men are the primary decision-makers, especially at the community level (Jode & Flintan, 2020). Descriptive questions within our original survey generally support this. We find that 55% percent of respondents held explicitly biased beliefs about youth or women, and only 33% endorsed egalitarian beliefs (e.g. "Women should have

the same chance as men of occupying leadership in this village.). See appendix C for a list of all four questions.

Survey experiment

The survey experiment uses a short vignette, in which a quota for including youth and women is introduced to a participatory planning committee, which is tasked with allocating funding for public goods. In the 'low-quota' condition, 20% of positions must go to women and youth (3 of 15). Whereas, in the 'high-quota' condition, 80% (12 of 15) are allocated to women and youth. To increase salience, respondents were also shown a stylized representation of the descriptive identities of the committee members (see Figure 1).

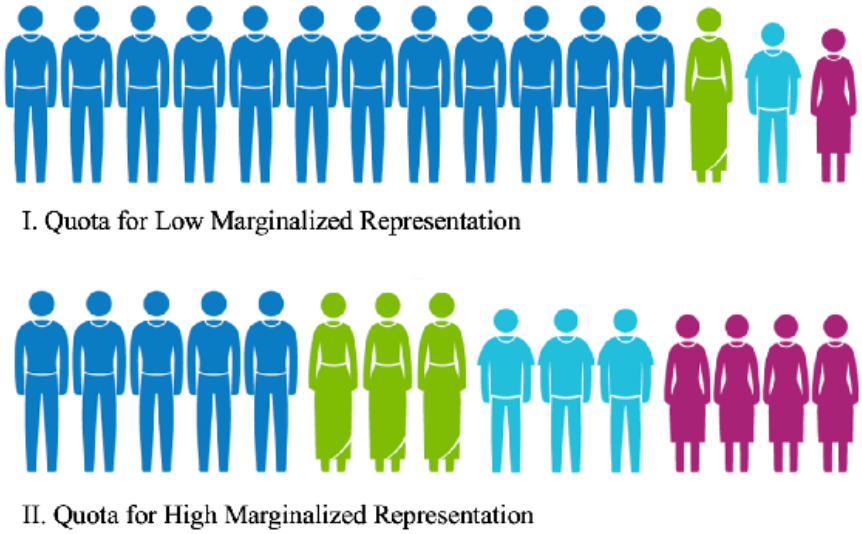

Figure 1: Stylized Representation of High / Low Descriptive Representation via Quota

Dependent variables

We collect seven dependent variables, meant to provide insight into why and when quotas produce a backlash. Six of the seven variables ask respondents to state their expectations for the hypothetical committee (across either of the treatment arms). Respondents rated their agreement on a five point scale of "Strongly Agree" to "Strongly Agree" to statements related to the capacity to: understand local needs and solutions, engage the county government, engage NGOs, respond to future droughts, expected community trust in the hypothetical committee, and finally person interest in becoming a member. Notably, 'expected community trust in the hypothetical community' is meant to capture second-order beliefs about the committee, and perceptions of social norms.

Finally, we include a hypothetical behavioral measurement, asking participants to allocate a portion of 10 million Kenyan shillings (76,000 USD) for either the county government or the ward-level committee to control. This measure if meant to capture how much the respondent trusts the committee *relative* to the county government. In Kenya, following devolution in 2013, county governments plays a central role in allocating the national development budget for public goods investment.

Variable	Description
Capacity, Understand Problem [Likert]	These committee members will have a deep understanding of the problems facing this ward and be able to identify realistic solutions for addressing them.
Capacity, Engage Govt [Likert]	These committee members will be able to successfully engage the county government, influencing the government's official Annual Development Plan to reflect the needs identified by the committee.
Capacity, Engage NGO [Likert]	These committee members will be able to successfully engage NGOs working in the ward, ultimately influencing how external development funding is spent in the ward.
Capacity, Respond Drought [Likert]	This committee will be able to respond effectively to future droughts and other unexpected crises.
Interest in Joining [Likert]	If I lived in this ward, I would like to contest to become a member of this committee sometime in the future.
Expected Community Trust [Likert]	The majority of village members across Ng'iro Ward would have high trust in these committee members, trusting them to allocate the ward's limited funding for development projects on their behalf.
Amount Budget Allocated [portion of 10 million shillings granted to committee]	Of this, how much do you think the committee should directly control, with the remainder being directed by the county planning department. Respondents choose the budget division between committee and county government on a scale of 0-10, based on a visual aid showing different allocation options. [% Allocation of 10 million shillings]

Table 1: Overview of Dependent Variables

Sampling and descriptive statistics

The survey experiment was fielded April - May 2023 across five predominantly pastoralist counties in Northern Kenya.[5] Survey data-collection was carried out independently by EDI Global (a subsidiary of Mathematica) with extensive experience deploying surveys and RCTs in East Africa. Data was collected in counties where Mercy Corps had previously implemented the Ward Development Plan (WDP) intervention. However, we sample wards where the intervention was both implemented and not implemented, with the majority of respondents being from wards in which the WDP was never implemented. Interviews took place across 51 wards, with a total of 2856 respondents.

Data collection was designed to provide a representative sample within each selected ward. The survey was collected by trained enumerators working for

[5]Garissa County, Isiolo County, Marsabit County, Turkana County, and Wajir County

EDI Global. Selection of respondents used grid-based random walks[6] and 'house skipping' to maximize variation. At each household all members were listed with a random respondent selected, stratified by gender. During informed consent, it was stressed to respondents that the survey was unrelated to any benefits and refusing to participate incurred no cost. The survey was conducted under an IRB review by Jomo Kenyatta University of Agriculture and Technology in Nairobi, Kenya.

The population of interest is the general population from wards likely to receive participatory development interventions. We sample from wards where a previous participatory planning intervention was implemented from 2017-2023, alongside selected nearby wards that were similar across covariates. We control for whether the wards actually received the intervention and randomize treatments between respondents. In this way, we use a population actually receiving a participatory intervention and construct an extension of this population across wards that may be considered likely to receive it. In counties with a smaller number of wards, this matching was less exact – due to a lower number of options – and approaches the general population of the counties.

Variable	Low-quota (n=1475)	High-quota (n=1381)	p-value	Test	SMD
Leadership positions num (mean (SD))	1.03 (0.81)	1.02 (0.80)	0.631		0.018
WDP treated (mean (SD))	0.28 (0.45)	0.27 (0.44)	0.497		0.025
Age (mean (SD))	40.34 (14.64)	40.41 (14.92)	0.905		0.004
Income			0.094		0.150
Education			0.399		0.085
Livestock holdings (mean (SD))	67.28 (184.91)	67.16 (181.00)	0.986		0.001
Respondent gender			0.500		0.027
HH relationship			0.428		0.119
Civil status			0.146		0.107
HH members (mean (SD))	7.12 (3.18)	7.02 (3.10)	0.411		0.031
Religion			0.920		0.026
Ethnic			0.649		0.069

Note: SD = Standard Deviation; SMD = Standardized Mean Difference.

A chi-squared test of independence is used for categorical variables, only the overall p-value is shown for space.

Table 2: Descriptive Statistics and Balance Test

Our experiment is generally well balanced across covariates potentially related to our dependent variables. Perfect gender balance was mechanical (1,428 male and 1,428 female) due sampling stratification which ensured parity. The 'Income' variable is the only one approaching significant difference between conditions. However, we include this, and all below variables, as controls as a robustness check, finding no change in results.

[6]Each village selected was drawn on a grid, with the starting point for the walk randomly decided among grid cells.

Section 3. Results

Our results produce a clear finding, but one which runs opposite to our theorized hypotheses. Not only do we fail to find a backlash, but we find a strong and consistent *positive bias* for committees in which the majority of committee members were youth and women. At first glance, the direction, magnitude, and consistency of this finding is notable. However, sub-group analysis further emphasizes that this finding hold across sub-groups who would traditionally be expected to assess a negative penalty. For instance, we find that older respondents (> 35), men, and Muslim respondents likewise have a significant, positive bias towards committees formed with large quotas. Albeit, the magnitude of this positive bias varies, often in expected manners.

Below, we first turn to the main results, showing that respondents have positive bias towards highly diverse committees on both instrumental and normative grounds. Next we analyze differences by sub-group. Finally, we turn to a set of debrief questions, in which respondents weighted the factors which they cared most about when thinking about how much decision-making power to grant to the hypothetical committee.

Main results

Our main results show a both a statistically and substantively strong positive bias *towards* committees with a high diversity quota, compared to those with a low diversity quota. Figure 1 illustrates this overall results. The figure shows multivariate, OLS model estimates and confidence intervals, with the estimates being the average difference in Agree/Disagree response (5-point, Likert) for high-diversity compared to low-diversity committees. This figure shows both naïve and controlled models[7]. However, in sub-groups we only show controlled for readability.[8]

[7]Controls include: whether the community participated in the Ward Development Planning intervention, income, education, religion, household livestock holdings, position within household (e.g. head of household), marriage/relationship status, number of household members, ethnicity, gender, and age). In sub-group analysis, the respective sub-group variable is not included as a control.

[8]Adding or removing controls does not change the direction or magnitude of our findings.

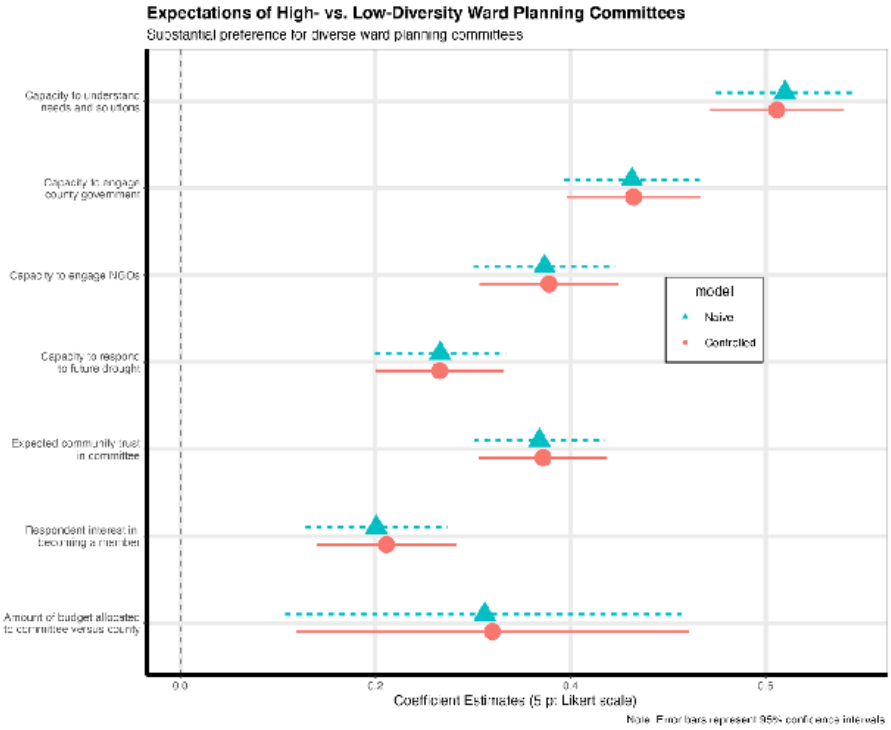

Figure 2. Expectation of High- Vs. Low-Diversity Committees

Our first four measures center on the expected *capacity* of high- versus low-diversity committees. We find that respondents expect high diversity committees to have substantially higher capacity across a range of domains. First, to understand the needs of the local community. This is not entirely surprising, as highly diverse committees may have a broader understanding of different needs in the communities. This is also our strongest positive measure. Second, and more unexpectedly, we find that diverse committees are expected to better engage with the county government. This is more surprising, as elders and men may be expected to be more politically connected. Third, high-diversity committees are expected to have higher capacity to engage NGOs on behalf of the community. Our fourth measure examines the expected effectiveness of these committees in response to environmental shocks, such as drought. Aligning with the other questions about capacity, respondents believed that the decisions made by diverse-committees would translate to better decision-making—i.e. resilience—in response to drought.

The next measure looks at the 'second-order' expectations for committees. That is, how much respondents believed *others* in the community would trust high- versus low-diversity committees. This second-order belief is indicative of how respondents perceive social norms in their community. Even if they themselves have a positive perception of high-diversity committees, they may not believe

others hold the same bias towards, due to collective ignorance (Bicchieri, 2006, 2016). However, we do *not* find this phenomenon. Instead, respondents correctly believe others in their community will trust high-diversity committees, significantly more so than in the low-diversity committee condition. The question of trust is related with expected legitimacy. While we did not ask respondents to evaluate any specific decision, community member's trust in the institutional process is closely tied to the legitimacy of its decisions.

The final attitudinal question asks whether respondents to how much they agree with a statement that they themselves would join such a committee. Like trust, we interpret this measures as being related to legitimacy. More legitimate institutions would be more attractive to join. Again, we find strong evidence that more respondents are interested in joining a high-diversity, versus low-diversity committee. This should not be interpreted as priming women and youth to view joining the committee as more normatively acceptable. Sub-group analysis, discussed further below, finds that older respondents and men are likewise more interested in joining the inclusive committees. While possible that higher interest by elders and/or men could be driven by a perception that they would have relatively higher power in joining, this would not explain why men, elders, and elder men also perceive these groups as more effective and trustworthy.

Sub-groups

Theory and the existing empirical work on quotas suggests that various sub-groups may respond differently to social engineering, such as quotas, designed to empower previously marginalized groups (Brulé, 2023). Generally, groups tend to favor quotas which favor their in-group, whereas dominant groups are most likely to be threatened by marginalized groups in decision-making roles (Lee et al., 2022). Below, we examine our findings according to age, education, gender, and religion. We find that non-marginalized groups (e.g. adults [35+], men, educated [above primary school]) continue having a strong positive bias towards marginalized groups. In some cases, such as age and gender, there is no statistically significant difference at all, with the somewhat odd exception that women were *less* likely to donate to diverse committees. When comparing adult males (age 35+ *and* male) to all others, we still find the same positive bias – directly contrary to our theorized expectations. Education seems to have a weakly liberalizing effect, producing marginally higher belief in the capacity of high-diversity committees for more educated respondents on two of the seven measures. However, it is only religion which has a substantially large effect, with Muslim populations having significantly weaker preference for high-diversity committees across most measures. Here, we only directly discuss religion given the other sub-groups broadly follow our main findings. Other sub-groups are provided in Appendix B.

Religion

Religious identity is associated with significantly different responses to high-diversity committees. While the positive bias is still present for all measures, excepting budget allocation which loses power, the size of this bias is far smaller, in some cases less than half. The largest differences are associated with the perceived capacity of the high-diversity committees. Again here, however, respondents' second-order beliefs matched those of their communities, meaning there is no collective ignorance, with the magnitude of the second-order belief roughly matching the other measures within each subgroup. Interestingly, neither propensity to join nor the amount of budget allocated to the high-diversity versus low-diversity committee differs as sharply by religion as the perceived-capacity measures do.

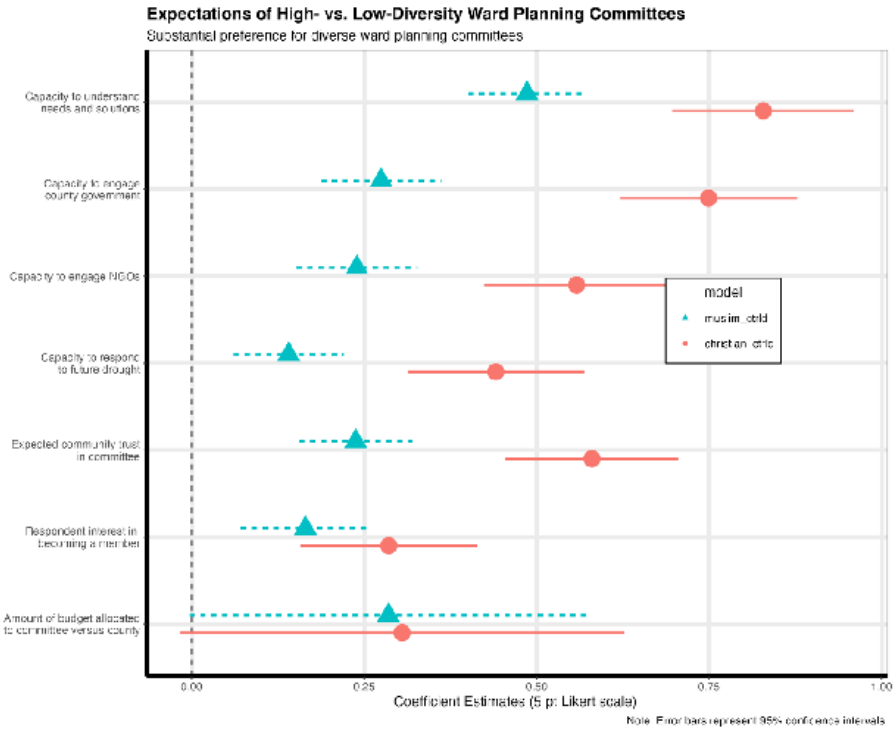

Figure 3: Sub-group Analysis, Religion

Exploratory Analyses

What factors influence perception of committees?

Our survey included a set of debrief questions, which asked respondents to weight how important different factors were in judging how much money to allocate to the hypothetical committee. Broadly, these factors help us understand the positive bias towards diverse committees. First, the categories most likely to be 'very important' support the leadership of women and youth. While this may be because the quotas in the vignette *primed* these as goals, this effect is still opposite of backlash, where the quotas decreased normative agreement with the goals. Secondly, and only tangentially related to the quotas, 'experience with previous projects' is the only category with a reasonably large minority of responses as 'slightly-' or 'not at all important' (17.3%, combined). This follows from our findings, where diverse committees, with majority women and youth are likely to have lower experience with development projects compared, due to their relatively participation in political decision-making.

All other factors—ability to understand community problems, trustworthiness, likelihood of receiving benefit, competence, and ability to confront participation—were seen as highly important. This further supports the interpretation that respondents did not perceive a trade-off between normative goals (inclusion of marginalized) and instrumental goals, and seem to have viewed them as complement, at least in the context of local planning committees.

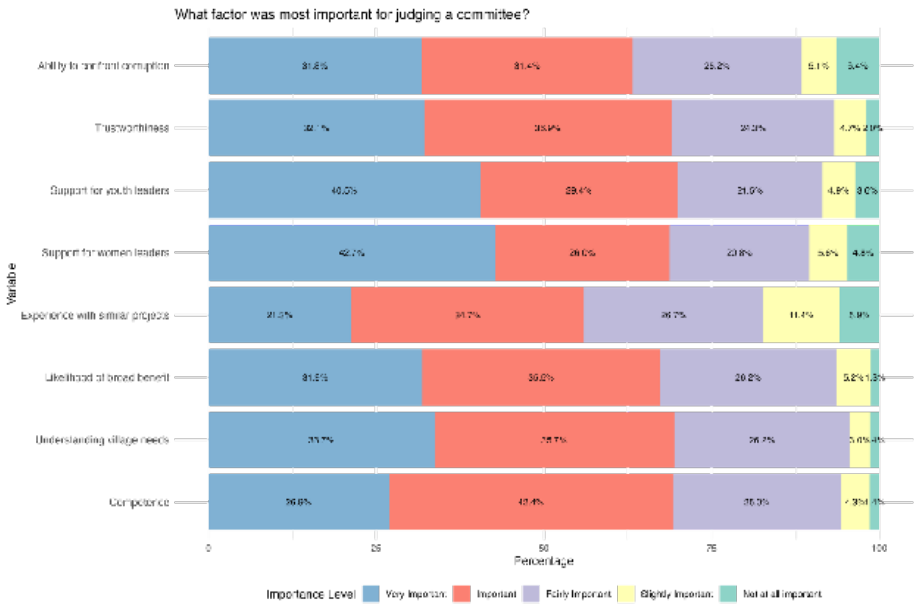

Figure 4: Factors Impacting Committee Perception, Importance Rating

Moderation analysis

We attempt to disentangle normative versus non-normative preferences for diversity by using moderation analysis. We leverage non-experimental questions within the survey, which ask respondents to state their preferences for both women and youth in leadership. We combine these answers into an unweighted index, and include this as a moderator; see appendix C for the list of questions. From this, we find that normative preference for women and/or youth in leadership does not, alone, explain the positive bias we find. Across multiple indicators, there is still a substantial non-normative preference for diversity (the effect of the treatment not interacted with normative preference). For instance, even controlling for the effect of normative preferences, respondents have strong beliefs in the greater capacity of diverse committees to understand local needs and solutions, engage the government, and earn trust from the community. While other measures dip below significance at the $p < .05$ level, the direction is unchanged.

Overall, this is again consistent with the interpretation that both instrumental and normative beliefs are driving positive bias for high-diversity committee quotas.

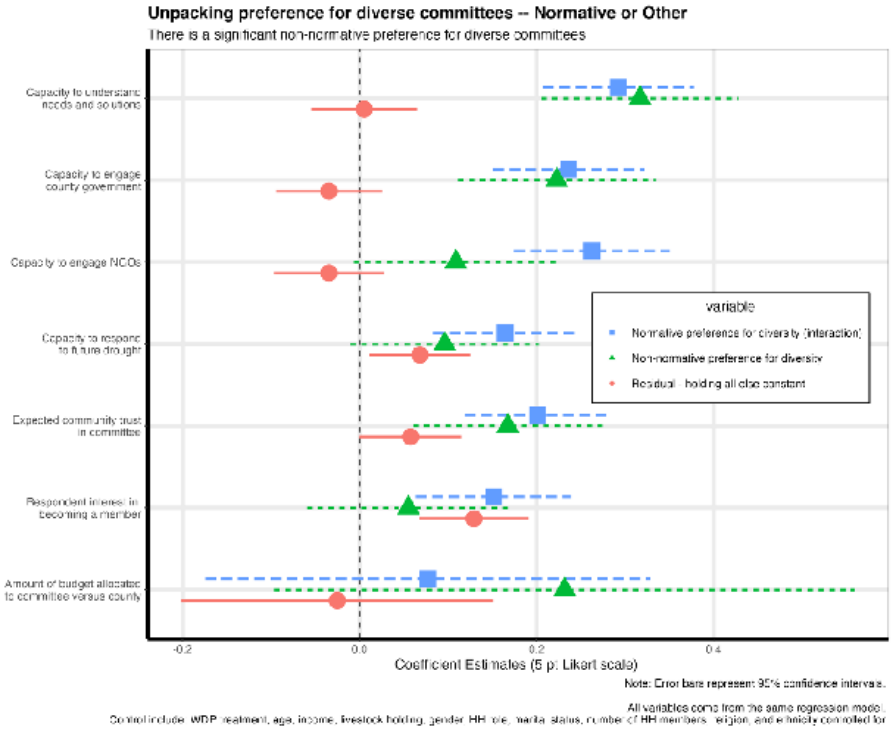

Figure 5: Unpacking preference for diverse committees – Normative or Other

Section 4. Discussion

The direction, consistency, and strength of our findings open up a number of questions. Most importantly, they only begin to open up the puzzle of why, at least in certain circumstances, highly patriarchal and age-biased societies not only fail to backlash against the imposition of social engineering, but even have a positive bias towards it (Kao et al., 2023). Kao et al. (2023) find that the introduction of gender equity-promoting quotas in patriarchal societies produces largely the same positive response as in societies where egalitarian decision-making norms are widely accepted. Our study further shows that increasing the normative deviation *strengthens* this response. To our knowledge, this is the first study to experimentally manipulate the *intensity* of quotas within the same context, in this case, pastoralist counties in northern Kenya. The remainder of this section considers briefly different explanations which might explain why a population with significant gender and age bias may nonetheless find institutions with high intensity equity quotas to be more legitimate than those with low-intensity equity quotas. We first consider why some explanations are

not supported, such as whether privately held egalitarian norms are driving this finding; whether support is driven by common ascriptive identity; or respondent's expectation that the inclusion of women and youth would be merely symbolic or 'present without presence' (Clayton et al., 2014), with no change in power. We argue that none of these explanations can explain all of the findings in our study or the broader literature.

In response, we tentatively advance an alternate explanation: that the symbolic redistribution of power away from elder men may represent a challenge to elite capture within the Kenyan context. We make this argument by drawing on qualitative research carried out in these communities, alongside a substantial literature on elite capture in Kenya, and the difficulty of combatting it, including with participatory interventions. While community members may not hold egalitarian values directly, if enforced, high intensity quotas guarantee a redistribution in, at minimum, formal decision-making roles. In this respect, Kenyan devolution and gender quotas represent complementary (and, in this case, intertwined) institutional interventions, which seek to shift power from an entrenched elite to 'within the people's reach' (D'Arcy & Cornell, 2016). This explanation would account for why groups descriptively disadvantaged by the quota (men, elders) would nonetheless respond positively. Further, this would explain seemingly puzzling findings, such as expectations that women and youth would provide a better interface to the county government. Given the personalistic nature of Kenyan politics, and gender and age bias, it is unlikely that this representation is due to perceived opportunity or capacity. Rather, it may be due to a new cohort of leaders, perceived as, at least potentially, shaking the grip of pre-existing elite groups.

Do communities hold egalitarian beliefs?

Our study follows Kao et al. (2023), by showing the direction and magnitude of the positive response is roughly similar between egalitarian and gender-biased contexts. However, it is unlikely that the source of the positive bias is a normative commitment to gender or age inclusion. As noted, the World Values Survey shows 70% of Kenya's general population being gender-biased with regard to political decision-making (United Nations, 2023). In pastoralist communities, studies suggest that gender roles are foundational to the resilience of pastoralist communities, in which men typically move with livestock in response to weather fluctuations (Jode & Flintan, 2020). Qualitative work by the authors[9] (Hakiman & Sheely, 2023) and others[10] (Grillos, 2018) in pastoralist Kenya corroborate this, with interviewees providing no indication that the broader society was demanding equal participation of marginalized groups on normative grounds. Finally, our own survey questions support this, with only 33% of respondents supporting egalitarian statements about both youth and women's role in lead-

[9]Interviews with women and youth participants conducted with conducted in Garissa, Isiolo, and Turkana Counties October-November 2021.

[10]Grillos (2018), interviews with women in Marsabit County.

ership, and 55% explicitly disagreeing with one or more; see appendix C for a list of all questions.

Are we merely capturing demand effects?

While we cannot directly test this assumption, we find it unlikely. First, respondents were not aware that they were comparing a less *intense* quota to a more intense one. As such, the introduction of a quota at all should have been interpreted as a movement towards more equity, albeit a marginal one in the low-intensity condition. Second, only 33% of respondents reported egalitarian beliefs across all four of the normative questions on gender and youth, with 55% reporting an explicitly non-egalitarian preference. This suggests a high willingness to explicitly state non-egalitarian beliefs, much more directly than in our experiment. This is especially true as our normative questions asked respondents to comparatively evaluate a biased (e.g. Only older people are mature enough to be leaders) or egalitarian statement (e.g. Responsible young people can be good leaders). Given the directness of the comparison, the purpose of the question as measuring adherence to international equity norms should have been more prominent in these comparative questions relative to our non-comparative experimental question.

Inclusiveness is not perceived as only benefiting the marginalized

There is substantial evidence that quotas can, at least in some circumstances, shift resources toward public goods preferred by previously marginalized groups (Chattopadhyay & Duflo, 2004; Clots-Figueras, 2012). In this case, we may expect to primarily or only see marginalized groups supporting the introduction of quotas, which would mandate the inclusion of representatives who share their descriptive identity and interests. However, our sub-group analysis does not find this. Looking at the group most threatened by quotas (age 35+ and male), we find no difference in most questions and even a marginally higher (though not statistically significant) willingness to donate to diverse committees compared to those who are younger and/or women. And, the exploratory analysis in which we hold normative preferences constant, finds that respondents still hold a substantial expectation of instrumental benefit. Altogether, this suggests that respondents expect quotas to generally produce more effective decision-making, despite women and youth having weaker governing experience and connections, as noted.

'Present without presence' does not seem to hold

Our data also does not support the interpretation that respondents expect the inclusion of women and youth would be merely symbolic, as token representatives. In this situation, quotas would promote marginalized members being 'present without presence' (Clayton et al., 2014). We do find that the increased

inclusion of women and youth may provide a relative symbolic benefit when engaging with external actors, such as NGOs, whose mandates directly support diversity and inclusion. However, respondents also report believing substantial quotas for women and youth will provide instrumental benefits, such as improved response to drought, representation to the county, and understanding of community needs. These measures should not be affected by symbolic representation alone, but rather by youth and women performing differently in some capacity.

Inclusive decision-making bodies may counteract unpopular institutional dynamics

We tentatively advance a preferred explanation for our results: quotas may represent an institutional device for shifting power away from older, male elites, who are perceived as emblematic of elite capture and corruption within Kenya (Branch et al., 2010; Cheeseman et al., 2020). In this case, women and youth represent an opportunity to re-negotiate power structures, by requiring older males – who are likely to enjoy power – to give up formal positions in community decision-making. Kenyan politics has a history of mobilization across generational divides, in which youth were characterized as opposing a corrupt old guard (Kagwanja, 2006), and a large-scale inclusion of women may similarly be seen as a reaction against the established elite.

We do not intend to make the claim that quotas would, in fact, be sufficient to shift power substantially. Participatory interventions in Kenya have produced uneven results for combatting elite capture (Sheely, 2015; Touchton & Wampler, 2023), or producing the expected benefit to marginalized groups such as women (Grillos, 2018). However, the ability of elites to successfully mobilize in response to participatory institutions and quotas meant to diminish their power does not suggest that these institutions do not provide an opening. Given that we did not supply participants with specifics about institutional design (e.g. decision-making or selection rules) beyond the quota ratios, we are capturing their heuristic evaluation of the committees with more or less women and youth introduced via quotas. We do not know how optimistic respondents' judgments may be. However, our results suggest that the failure of hypothetical gender or age quotas would *not* be due to a spontaneous, normative backlash by the wider population. That said, we cannot reject the possibility that elites may strategically mobilize the population later with reference to normative violations.

Section 5. Conclusion

When do equity-promoting quotas produce societal backlashes, which may blunt their effect? Using a survey experiment fielded in pastoralist areas of northern Kenya, we test whether it is not the presence of a quota, but the *intensity* of deviation from existing social norms that moderates the emergence of backlash.

Against expectations, our study suggests that the intensity of deviation from social norms is not itself sufficient to mobilize a backlash among the population. Indeed, at least in the context of northern Kenya, we find the opposite. Larger deviations from existing norms of inclusion in decision-making, that is, committees with fewer older men, were perceived as substantially more legitimate and instrumentally effective. This finding was not limited to the groups that gained descriptive representation, nor was it merely the result of a normative bias. Indeed, there is little evidence that the population has a strong normative bias toward the inclusion of women and youth.

To explain this puzzle, we tentatively advance an alternate explanation: quotas may be perceived as beneficial by virtue of displacing an entrenched elite that the community views as unaccountable. This interpretation matches qualitative interviews, alongside existing studies in the Kenyan context, which find that elite capture in Kenyan politics is viewed as a primary threat to public goods.

Our study advances existing studies on both quotas and the use of participatory institutions to foster inclusive, accountable governance and combat elite capture. We raise a number of questions which would benefit from further study. Especially, our design cannot directly test the emergent hypothesis that the legitimacy of more inclusive quotas is being driven by a perception that more diverse representation will lead to a reduction in elite capture by elder males. Additionally, while we find no evidence of a backlash occurring organically within this survey experiment, there is ample evidence that backlashes do occur. The question is whether there is a process of mobilization by elites, or whether this backlash occurs in other domains, such as intra-household relationships, which are not captured by our survey experiment.

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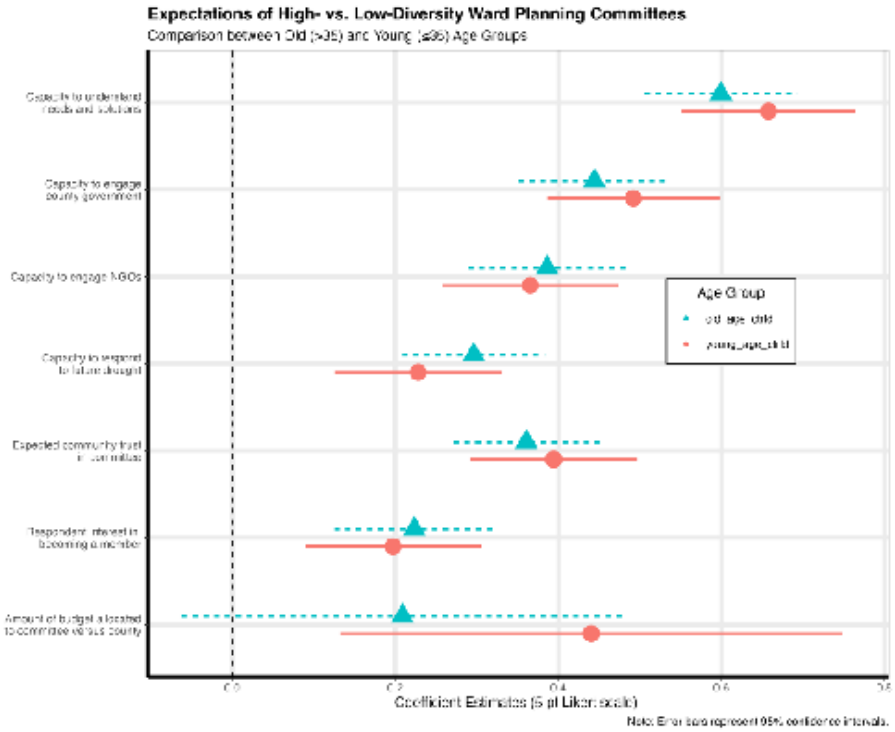
Appendix A: Visual Aid for High- and Low- Diversity Quota, Vignette Experiment

I. Quota for Low Marginalized Representation

II. Quota for High Marginalized Representation

Appendix B: Sub-group Analysis for Age, Gender, and Education



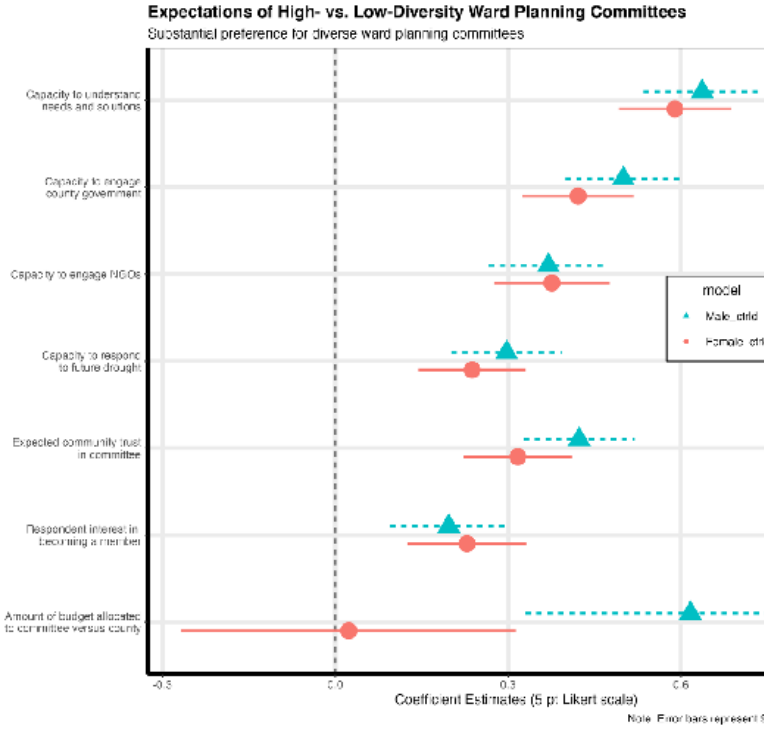


Figure 6: Sub-group Analysis by Age
Figure 7: Sub-group Analysis by Gender

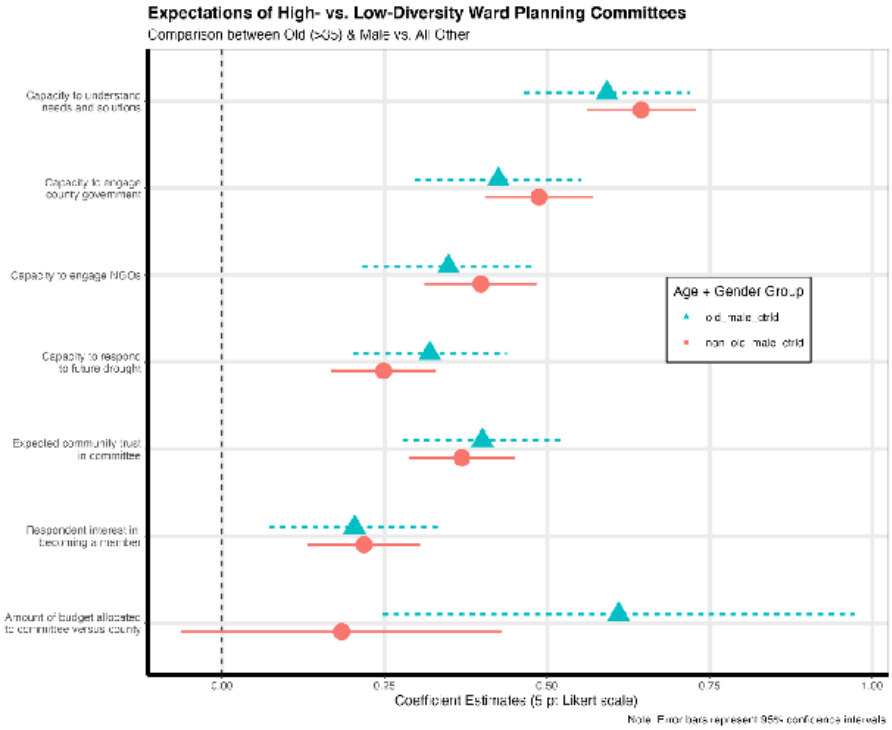
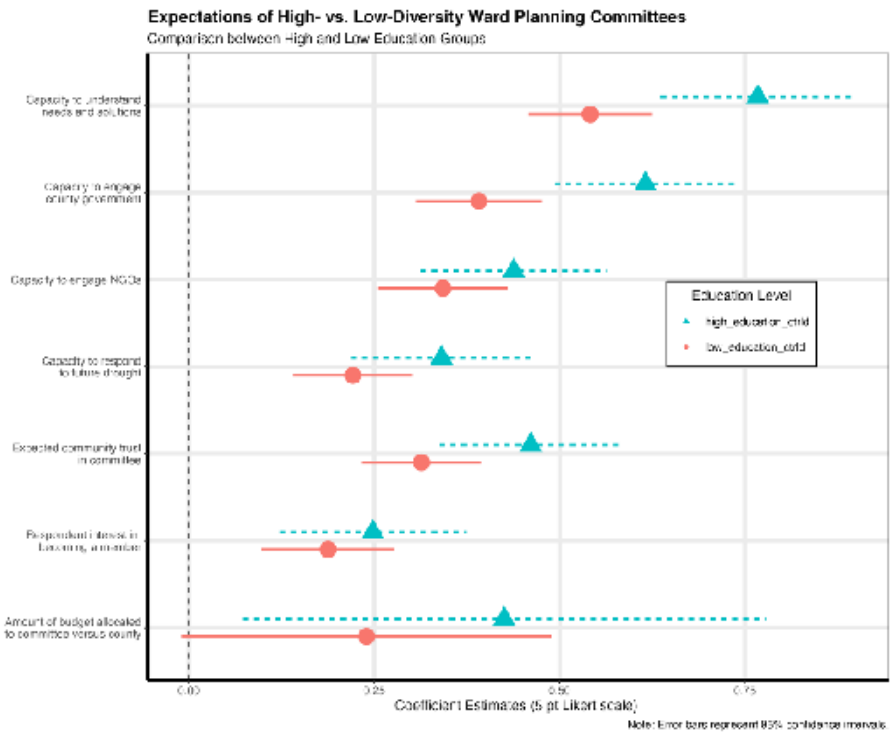


Figure 8: Sub-group analysis comparing older (age 35+) men vs. all others



Note: Low-Education defined as Less than Primary Schooling

Figure 9: Sub-group Analysis by Education

Appendix C: Leadership Beliefs Related to Age and Gender

Below are the four questions included in our survey regarding either gender or age and leadership.

youngpeople_goodleaders
Statement A. Responsible young people can be good leaders. **Statement B**. Only older people are mature enough to be leaders.

women_submissive
62. **Statement A**. According to our mores and customs, women have always been submissive and should remain as such.
Statement B. In our country, **women** should have the same **rights and obligations** as men.

youngpeople_goodleaders
socio_admin 63. **Statement A**. **Women** should have the same chance as men of occupying **leadership** in this village. **Statement B**. Men are better leaders and they alone should occupy the socio-administrative positions in this village. **men_chair** 64. **Statement A**. Only **men** should be **chairmen of local committees** in the village. **Statement B**. Women have knowledge to contribute. They should therefore be eligible to chair local committees in the village.